

**25CMCV00442 25CMCV00442**

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-24

Motion: PLAINTIFF'S MOTION FOR RELIEF PURSUANT TO CCP § 473(b) DATE: June 24, 2026 TIME: 8:30 A.M.

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=COM%2CE%2C06%2F24%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C06%2F24%2F2026)

Source SHA-256: be76e1fc5c9f25e845ef0f7aa014c1d98cd1c67868d02cc745f044f018b69991

Case Number: 25CMCV00442 Hearing Date: June 24, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL

DISTRICT

JESUS

MANUEL RANGEL,

Plaintiff,

vs.

MARLENE SISON-MODINO,

Defendant.

)

)

)

)

)

)

)

)

)

)

CASE

NO: 25CMCV00442

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION

FOR RELIEF PURSUANT TO CCP § 473(b)

DATE: June 24, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Jesus Manuel Rangel

Responding Party: Defendant

Marlene Sison-Modino

Notice: OK

Tentative Ruling: Plaintiff's Motion for

Relief Pursuant to CCP § 473(b) is DENIED.

I.

## BACKGROUND

This is an

action for breach of contract and habitability concerns regarding a residential

lease for a garage located at 332 E. Carson Street, Carson, CA 90745 (the

“Premises”).

On March 17, 2025, Plaintiff Jesus Manuel Rangel

(“Plaintiff”) filed his original Complaint against Defendants Marlene

Sison-Modino (“Defendant”) and Does 1 to 20, alleging three causes of action

for: (1) Breach of Contract; (2) Negligence; and (3) Violation of Civil Code

Section 1942.4.

On January 20, 2026, Defendant filed a demurrer to

Plaintiff’s complaint.

Defendant’s

Demurrer was heard on April 1, 2026 and, after taking Defendant’s Demurrer

under submission, the Court issued a ruling sustaining Defendant’s Demurrer

with leave to amend. (See Minute Order,

4/1/26.) Plaintiff was ordered to file

an amended complaint no later than May 4, 2026. (See *Id.*) The Court gave notice of its ruling. (See Clerk’s Certificate of Service by

Electronic Service, 4/2/26 (Notice to Defendant); see also Clerk’s Certificate

of Mailing, 4/1/26 (Notice to Plaintiff) .)

On May 11,

2026, Defendant filed an Ex Parte Application for Order Dismissing Action With

Prejudice for Failure to Amend Complaint After Demurrer was Sustained With

Leave to Amend and For Entry of Judgment (the “Ex Parte Application”). Plaintiff filed an Opposition to Defendant’s

Ex Parte Application on May 13, 2026.

The Court issued an Order granting Defendant’s Ex Parte Application and

dismissing this matter with prejudice on May 14, 2026. (See Ruling on

Defendant’s Ex Parte Application for Order of Dismissal Pursuant to Code of

Civil Procedure § 581(f)(2), filed 5/14/26.)

On May 27,

2026, Plaintiff filed the instant Motin for Relief Pursuant to CCP § 473(b).

On June

10, 2026, Defendant filed an Opposition.

As of June

22, 2026, no Reply has been filed. Pursuant

to Code Civ. Proc. § 1005(b), all reply papers must be filed and served at

least five court days before the hearing. (Code Civ. Proc. § 1005(b).)

Accordingly, any reply papers now filed are untimely, and the Court exercises

its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule

1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31

Cal.App.5th 640, 657.)

II.

## ANALYSIS

A.

Legal

Standard

Code of Civil Procedure § 473(b)

“provides for both discretionary and mandatory relief. [Citation.]” (Pagnini

v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) An application

for relief under this section must be made no more than six months after entry

of the judgment, dismissal, order, or other proceeding from which relief is

sought, and must be accompanied by an affidavit of fault attesting the mistake,

inadvertence, surprise or neglect of the moving party or its attorney. (Code

Civ. Proc., § 473(b); English v. IKON Business Solutions (2001)

94 Cal.App.4th 130, 143.)

In addition, an application for relief under this section “shall

be accompanied by a copy of the answer or other pleading proposed to be filed

herein, otherwise the application shall not be granted.” (Code Civ. Proc. §

473(b).) Relief under this section is mandatory when based on an

attorney affidavit of fault; otherwise, it is discretionary. (Ibid.)

B.

Discussion

Plaintiff moves for relief from the

Court's May 14, 2026 order dismissing this matter pursuant to Code of Civil

Procedure § 581(f)(2), asserting that "[d]ue to mistake, inadvertence, and

excusable neglect, the amended complaint was not timely filed." (See Mot., p. 1:21-23;

see also Rangel Decl., Mot, p. 2:8-9.) Defendant opposes, arguing that the

mandatory provisions of Code of Civil Procedure § 473(b) are inapplicable and

discretionary relief should be denied where there is no adequate showing of

mistake, inadvertence, surprise or excusable neglect. Citing *Peltier v. McCloud River R.R. Co.*

(1995) 34 Cal.App.4th 1809 ("Peltier"), Defendant further argues that

Code of Civil Procedure § 473(b) is intended only to reach those dismissals

which resulted from the failure to oppose a dismissal motion, which is not the

case here given that Defendant's Ex Parte Application to Dismiss was opposed.

The Court finds Defendants'

arguments persuasive.

First, outside of summarily stating

that the failure to file an amended complaint as ordered was the result of

mistake, inadvertence or excusable neglect, Plaintiff provides no factual basis

for the Court to make such a determination.

Second, a motion for relief made

pursuant to Code of Civil Procedure § 473(b) “shall be accompanied by a copy of

the answer or other pleading proposed to be filed therein, otherwise the

application shall not be granted.” (Code Civ. Proc. § 473(b).) Plaintiff has not included with his motion a

copy of his proposed amended complaint, which omission not only precludes

relief under Code of Civil Procedure § 473(b) but is further concerning given

that the claimed mistake, inadvertence, surprise and/or excusable neglect arose

from Plaintiff’s failure to file his amended complaint in accordance with the

Court’s order requiring that the amended pleading be filed by May 4, 2026.

Finally, Defendant is correct in

that Plaintiff was informed of the prior Ex Parte Application for an Order of

Dismissal and filed an Opposition to the Ex Parte Application. (See Opposition,

filed 5/13/26.) And Defendant is also correct in that controlling authority as set

forth in *Peltier*, supra, sets forth the rule that Code of Civil

Procedure § 473 pertains only to dismissals which are procedurally equivalent

to a default. (See *Peltier*, supra, 34 Cal.App.4th at p. 1817 (Reviewing

appellate authority and adopting the interpretation that “when the Legislature

incorporated dismissals into section 473 it intended to reach only those

dismissals which occur through failure to oppose a dismissal motion--the only

dismissals which are procedurally equivalent to a default").)

III.

#### CONCLUSION

For the foregoing reasons,

Plaintiff's Motion for Relief Pursuant to CCP § 473(b) is DENIED.

Case Number: 25CMCV01869-1 Hearing Date: June 24, 2026 Dept: E

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

VCG-SOUTHBAY

PAVILION, LLC, a Delaware limited liability company,

Plaintiff,

vs.

LAP CARSON INVESTMENTS,

LLC, a California limited liability company dba Pieology; MEHRDAD JAVADI, an

individual; ALI GHOMIZADEH, an individual; REZA KHALEGHIAN, an individual;

MERCEDEH KHALEGHIAN, an individual and DOES 1 through 20, inclusive,

Defendants.

LAP CARSON INVESTMENTS, LLC, a California limited



liability company dba Pieology,

Cross-Complainant,

vs.

VCG-SOUTHBAY PAVILION, LLC, a Delaware limited

liability company; and ROES 1 to 10, inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25CMCV01869

[TENTATIVE] ORDER RE: CROSS-DEFENDANT VCG-SOUTHBAY PAVILION, LLC'S

DEMURRER TO THE FIRST AMENDED CROSS-COMPLAINT

DATE: June 24, 2026

TIME:

8:30 A.M.

DEPT.: E

Moving Party: Cross-Defendant

VCG-Southbay Pavilion, LLC

Responding Party: Cross-Complainant LAP Carson

Investments, LLC

Notice: Ok

Tentative

Ruling: Defendant's

Demurrer is SUSTAINED WITH TEN (10) DAYS' LEAVE TO AMEND.

Defendant's

Motion to Strike is DENIED AS MOOT.

I.

#### BACKGROUND

This is an action for breach of a commercial lease

and breach of guaranty. Plaintiff

VCG-Southbay Pavilion, LLC ("Plaintiff" or "VCG") alleges that, on or about

October 24, 2013, it entered into a commercial lease with Defendant LAP Carson

Investments, LLC ("LAP") for the real property located at 20700 Avalon Blvd.,

Unit B31/32, Carson, CA 90746 (the "Premises").

Plaintiff alleges that, on the same date, Defendants Mehrdad Javadi

("Javadi"), Ali Ghomizadeh ("Ghomizadeh"), Reza Khaleghian ("Reza")<sup>[1]</sup> and

Mercedeh Khaleghian ("Mercedeh") executed a Guaranty of LAP's lease with

Plaintiff, unconditionally and irrevocably guaranteeing LAP's performance under

the lease. Plaintiff alleges that LAP

defaulted in its lease obligations.

On

November 4, 2025, Plaintiff filed the operative Complaint against LAP, Javadi,

Ghomizadeh, Reza, Mercedeh, and DOES 1 through 20, inclusive, alleging causes of action for: (1) Breach of Lease; and (2) Breach of Guaranty.

On

December 13, 2025, LAP filed a Cross-Complaint against VCG, alleging causes of action for: (1) Breach of Lease Agreement; (2) Breach of Implied Duty of Good Faith and Fair Dealing; (3) Negligence; (4) Constructive Eviction; and (5) Unfair Business Practices.

On

January 27, 2026, LAP filed its First Amended Cross-Complaint (the "FACC") against VCG alleging the same causes of action as alleged in the original Cross-Complaint.

On April

10, 2026, VCG filed the instant Demurrer and Motion to Strike as to the FACC.

On June 22, 2026, LAP filed a

singular opposition to both VCG's Demurrer and Motion to Strike. LAP's belated Opposition asserts that LAP's counsel "prepared, filed and served . . . a Second Amended Cross Complaint" on the date the Opposition was due, believing that LAP was entitled to amend its pleading as a matter of course pursuant to Code of Civil Procedure § 472(a) and further asserts that the Second Amended Cross-Complaint was "prepared specifically to address and cure the issues raised in the Demurrer and Motion

to Strike.” (Nami Decl., ¶¶ 3, 5.) Upon review of the docket, the Court finds no

Second Amended Cross-Complaint filed with the Court.[2] And the Court finds Code of Civil Procedure §

472(a) to be clear in its application such that any belief that a Second

Amended Cross-Complaint could be filed without leave of Court (and therefore no

opposition to VCG’s Demurrer and Motion to Strike need be filed) does not

amount to mistake, inadvertence or excusable neglect warranting the Court’s consideration

of the untimely filed Opposition. The

Court therefore finds that Cross-Complainant’s Opposition, filed a mere two

court days prior to the hearing on VCG’s Demurrer and Motion to Strike, is

untimely and deprives VCG of the opportunity to present a proper Reply. Accordingly, the Court exercises its

discretion to refuse to consider VCG’s untimely filed papers. (Cal. R. Ct.,

Rule 1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019)

31 Cal.App.5th 640, 657.)

I.

ANALYSIS

A.

Legal

Standard

A party may demur to a complaint on

the grounds that it “does not state facts sufficient to constitute a cause of

action.” (Code Civ. Proc. § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts

accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc.

(2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and

not the evidence or other extrinsic matters. Therefore, it lies only where the

defects appear on the face of the pleading or are judicially noticed.” (SKF

Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue

involved in a demurrer hearing is whether the complaint, as it stands,

unconnected with extraneous matters, states a cause of action.” (Hahn, supra,

147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions,

deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance

Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings

liberally, sufficient facts must be alleged to support the allegations pled to

survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81

Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be

allowed where there is a reasonable possibility of successful amendment. (Goodman

v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed

the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

B.

Meet and

Confer

Before

filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ.

Proc. § 430.41(a).)

Counsel

for Cross-Defendant, Daniel L. Goodkin (“Goodkin”) declares that on February 23, 2026, he sent counsel for Cross-Complainant a meet and confer letter by email advising of the specific deficiencies in the First Amended Cross-Complaint. (Goodkin Decl., ¶ 3.) Goodkin declares that on March 11, 2026 he participated in a meet and confer discussion with Cross-Complainant’s attorney via telephone, but counsel for Cross-Complainant did not agree to withdraw or amend the challenged allegations. (Goodkin Decl., ¶ 4.)

The

Court finds that Cross-Defendant has satisfied the statutory meet and confer requirement.

C.

Discussion

VCG

demurs to the FACC on the ground that each cause of action fails to state facts

sufficient to constitute a cause of action and on the ground that each cause of

action is uncertain, ambiguous, and unintelligible.

1.

First Cause

of Action for Breach of Lease Agreement

VCG

argues that the First Cause of Action for Breach of Lease Agreement is

defective because it is premised upon the allegation that VCG failed to

negotiate or complete assignment of the lease to Blaze Pizza and/or to enter

into a new lease. VCG argues the FACC does not allege that an assignment was

ever executed and because no assignment occurred, VCG cannot be liable for

failing to approve one.

“To

prevail on a cause of action for breach of contract, the plaintiff must prove



(1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff. (Richman v. Hartley (2014) 224 Cal.App.4th

1182, 1186.) "A written contract may be pleaded either by its terms

– set out verbatim in the complaint or a copy of the contract attached to the

complaint and incorporated therein by reference – or by its legal

effect. [Citations.] In order to plead a contract by its legal

effect, plaintiff must 'allege the substance of its relevant terms. This is

more difficult, for it requires a careful analysis of the instrument,

comprehensiveness in statement, and avoidance of legal conclusions.'

[Citation.]" (McKell v. Washington Mutual, Inc. (2006)

142 Cal.App.4th 1457, 1489.)

Here,

the FACC pleads the existence of a contract (the lease agreement) and

Cross-Complainant's performance of the contract. (FACC ¶¶ 55-56.) The FACC

pleads that Cross-Defendant materially breached by failing to provide adequate

security for the shopping center, by mismanaging the shopping center and

charging Cross-Complainant excessive operating costs in violation of the lease,

and by withholding consent to the proposed assignment of the lease to Blaze

Pizza. (FACC ¶¶ 57-59.) The FACC also alleges resulting damages as net

operating losses and lost profits. (FACC ¶ 61.) However, Cross-Complainant has

failed to plead the terms of the lease agreement either by setting it out

verbatim in the complaint or incorporating a copy of the contract by reference.

Instead, Cross-Complainant appears to attempt to plead the Lease's legal effect. (See, e.g., FACC ¶ 9 ("Pursuant to the terms

of the Lease, Cross-Defendant had certain obligations and duties to Cross-Complainant,

including but not limited to . . ."); ¶10 ("Under the Lease, Cross-Defendant

was obligated to manage, operate, and maintain the Shopping Center in a

reasonable, prudent and cost-effective manner consistent with the standards of

comparable shopping centers").) But a portion of Cross-Complainant's allegation

have to do with Cross-Defendant's alleged failure to approve the proposed

transfer and assignment of the Lease to Blaze Pizza. (See FACC ¶¶ 13-19.) Cross-Complainant does not provide sufficient

allegations as to either the substance or legal effect of the provisions of the

Lease dealing with assignment for the Court to meaningfully analyze the alleged

breach(es) or resulting damage(s). (See *Ersa Grae Corp. v. Fluor Corp.*

(1991) 1 Cal.App.4th 613, 623 (a contract must be sufficiently definite for a

court to ascertain the parties' obligations and determine whether those

obligations have been performed or breached); *Bowers v. Raymond J. Lucia*

*Cos., Inc.* (2012) 206 Cal.App.4th 724, 734 (contract terms must be

"reasonably certain" to provide a basis for determining the existence

of a breach).) Accordingly, the Court

finds that the FACC fails to adequately allege each element as to the First Cause of Action.

Cross-Defendant's Demurrer to the

FACC's First Cause of Action is therefore SUSTAINED WITH LEAVE TO AMEND.

2.

Second Cause

of Action for Breach of Covenant of Good Faith and Fair Dealing

VCG

contends that the FACC's Second Cause of Action seeks to use the implied covenant to impose

duties that do not appear in the Lease and further argues that the implied

covenant claim is entirely duplicative of the First Cause of Action.

Cross-Defendant argues the FACC alleges no conduct independent of the supposed

contractual breaches.

"Every

contract imposes upon each party a duty of good faith and fair

dealing in its performance and its enforcement.'" (Hicks v. E.T. Legg &

Associates (2001) 89 Cal.App.4th 496, 508, citations omitted.)

"[T]he scope of conduct prohibited by the covenant of good

faith is circumscribed by the purposes and express terms of the contract.'

" (Id., at p. 509 (citation omitted).) "The covenant of good

faith and fair dealing, implied by law in every contract, exists ... to

prevent one contracting party from unfairly frustrating the other party's right

to receive the benefits of the agreement actually made." (Guz v. Bechtel

National Inc. (2000) 24 Cal.4th 317, 349.)

A

cause of action for breach of the implied covenant of good faith and

fair dealing must first allege the existence of a contractual relationship. (Smith

v. San Francisco (1990) 225 Cal.App.3d 38, 49.) The allegations for

this cause of action then must go "beyond breach of the contractual duty

itself." (Careau & Co. v. Security Pacific Business Credit, Inc. (1990)

222 Cal.App.3d 1371, 1394 (internal quotations omitted).) Indeed, "allegations

which assert such a claim must show that the conduct of the defendant, whether

or not it also constitutes a breach of a consensual contract term, demonstrates

a failure or refusal to discharge contractual responsibilities, prompted not by

an honest mistake, bad judgment or negligence but rather by a conscious and

deliberate act, which unfairly frustrates the agreed common purposes and

disappoints the reasonable expectations of the other party thereby depriving

that party of the benefits of the agreement. Just what conduct will meet

these criteria must be determined on a case by case basis

and will depend on the contractual purposes and reasonably

justified expectations of the parties.” (Id., at p. 1395.)

Here,

the FACC alleges that Cross-Defendant breached the implied covenant of good

faith and fair dealing by unreasonably withholding approval of the proposed

assignment of Lease to Blaze Pizza, discontinuing negotiations with Blaze Pizza

without justification, failing to provide adequate security at the Shopping

Center, deliberately reducing security expenditures to maximize profits,

over-saturating the Shopping Center with competing restaurant tenants,

mismanaging the Shopping Center, charging Cross-Complainants excessive and

unreasonable operating costs, and failing to take reasonable steps to address

Cross-Complainants concerns. (FACC ¶ 67.) The FACC does not allege that these

allegations go beyond the breach of any specific contractual duty. These

allegations are substantially similar to the alleged breaches of contractual

duty alleged in the First Cause of Action. Combined with the Court’s previously

set forth analysis regarding the failure to fully allege the terms of the Lease

Agreement, the Court finds that – as currently pleaded – Cross-Complainant’s

Second Cause of Action does not appear to allege conduct that goes beyond

breach of a contractual duty.

Accordingly,

Cross-Defendant’s demurrer to FACC’s Second Cause of Action is SUSTAINED WITH

LEAVE TO AMEND.

3.

Third Cause

of Action for Negligence

VCG

contends that the FACC's Third Cause of Action for Negligence is barred by the Economic

Loss Rule because it seeks recovery of purely economic losses arising from an

alleged breach of contract.

The

Economic Loss Rule generally bars recovery in tort for negligently

inflicted purely economic losses and requires a contractual party to recover in

contract for purely economic loss due to disappointed expectations unless the

party can demonstrate harm above and beyond a broken

contractual promise. (*Rattagan v. Uber Technologies, Inc.* (2024) 17

Cal.5th 1, 20 ("*Rattagan*"), citing *Robinson Helicopter*

*Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 and *Sheen*

*v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905,

922.)<sup>6</sup> Nevertheless, "[n]ot all tort claims for monetary losses

between contractual parties are barred by the economic loss rule." (*Sheen*

*v. Wells Fargo Bank, N.A.*, *supra*, 12 Cal.5th at

p. 922.) “[C]laims are barred when they arise from—or are not independent of—the parties’ underlying contracts.” (Ibid.) For example, the economic loss rule does not apply to property damage, which is not a purely economic loss. (Ibid.) And the most widely recognized exception to the economic loss rule is when a defendant’s conduct constitutes a tort as well as a breach of contract. (Harris v. Atlantic Richfield, *supra*, 14 Cal.App.4th at p. at 78.) “Courts generally permit tort suits if the defendant allegedly violated a duty rooted in tort principles that is independent of the parties’ contractual rights and obligations and exposed the plaintiff to a risk of harm beyond the parties’ reasonable contemplation when they entered into the contract.” (Rattagan, *supra*, 17 Cal.5th at p. 23.)

Here,

the FACC alleges that VCG had actual and constructive knowledge of criminal activities and failed to take reasonable steps to remedy the conditions. (FACC ¶¶ 75-77.) Although it appears that the FACC seeks recovery for an independent tort duty, the FACC does not adequately plead whether the Cross-Defendant had a duty to keep the shopping center safe from criminal activities independently from its contractual duties. Instead, the FACC alleges that Cross-Defendant owed a contractual duty to maintain the Shopping Center in a reasonably safe condition. (See FACC

¶¶ 9, 25-27, 74.) Because the FACC has not clearly pleaded loss that does not arise from the Lease itself, Cross-Defendant's Demurrer to the Third Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

4.

Fourth Cause

of Action for Constructive Eviction

Constructive eviction

occurs when there is a substantial and material interference with the tenant's

beneficial use and enjoyment of the premises, causing the tenant to vacate. (Stoiber

v. Honeychuck (1980) 101 Cal.App.3d 903.) "An essential element

of a wrongful eviction claim is that the tenant has vacated the premises." (Ginsberg v. Gamson (2012) 205

Cal.App.4th 873, 900 (citing Green v. Superior Court (1974) 10 Cal.3d

616, 623; Petroleum Collections, Inc. v. Swords (1975) 48 Cal.App.3d 841,

847).)

Here,

the FACC fails to sufficiently allege constructive eviction. The FACC alleges

that VCG's failure to provide adequate security, its allowance of squatters,

and its failure to remedy dangerous and unsafe conditions despite repeated

complaints constituted LAP's constructive eviction from the premises. (See FACC

¶¶ 83-85.) However, the FACC does not allege that LAP actually vacated the



premises.

Accordingly, VCG's Demurrer to the

FACC's Fourth Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

5.

Fifth Cause

of Action for Unfair Business Practices

In

its Fifth Cause of Action, LAP alleges unlawful and unfair business practices

in violation of Business and Professions Code § 17200 (the "UCL"). (See FACC ¶¶ 92-94.) VCG argues that the FACC does not allege

facts sufficient to support an unfair business practice and the FACC does not

allege that VCG wrongfully obtained or retained any money or property belonging

to LAP.

In general, to set forth a claim for

a violation of the UCL, a Plaintiff must allege: (1) a business practice; (2)

that is unfair, unlawful or fraudulent; and (3) an authorized remedy. (Bus.

& Prof. Code § 17200; See *Paulus v. Bob Lynch Ford, Inc.* (2006) 139

Cal.App.4th 659, 676-677 ("Paulus").)

Because Business & Professions Code § 17200 is written in the

disjunctive, "it establishes three varieties of unfair competition--acts or

practices which are unlawful, or unfair, or fraudulent.” (Gregory v. Albertson’s, Inc. (2002) 104 Cal.App.4th 845, 851 (quoting AICCO, Inc. v. Insurance Co. of North America (2001) 90 Cal.App.4th 579, 587; See also McKell v. Wash. Mut., Inc. (2006) 142 Cal.App.4th 1457, 1470-1471 (A business practice need only satisfy one of the three criteria—unlawful, unfair, or fraudulent—to be considered unfair competition.)) However, while the scope of the UCL is broad and covers a wide range of conduct, a cause of action under the UCL “is not an all-purpose substitute for a tort or contract action.” (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173; see also Paulus, supra, 139 Cal.App.4th at pp. 676-677.)

An unlawful business practice or act is an act or practice, committed pursuant to business activity, that is at the same time forbidden by law. (Farmers Ins. Exchange v. Superior Court (1992) 2 Cal. 4th 377, 383.) Virtually any law can serve as the predicate for a Section 17200 action. (State Farm, Fire & Casualty Co. v. Superior Court (1996) 45 Cal. App. 4th 1093, 1102-1103 (“State Farm”).)

Determination of whether a business practice or act is "unfair" within the meaning of the UCL entails examination of the impact of the practice or act on its victim, " ' . . .

balanced against the reasons, justifications and motives of the alleged

wrongdoer. In brief, the court must weigh the utility of the defendant's

conduct against the gravity of the harm to the alleged victim . . . .'

[Citation.]" (State Farm, *supra*, 45 Cal. App. 4th 1093 at pp.

1103-1104).) In general the "unfairness" prong "has been used to

enjoin deceptive or sharp practices. . . ." (Samura v. Kaiser Foundation

Health Plan, Inc. (1993) 17 Cal. App. 4th 1284, 1299, fn. 6.) "Unfair," as defined in the UCL, is not

premised upon a "purely subjective notion," but is instead "intentionally

broad, thus allowing courts maximum discretion to prohibit new schemes to

defraud." (People ex rel. Bill Lockyer v. Fremont Life Ins. Co. (2002)

104 Cal.App.4th 508, 516.)

Here, the FACC alleges that

Cross-Defendant's unlawful practices include breaching the lease, failing to

provide adequate security, oversaturating the Shopping Center with competing

restaurant tenants, and acting in bad faith and in Cross-Defendant's own

financial self-interest without regard for Cross-Complainant's rights. (See FACC

¶¶ 91-93.) As stated above, an "unlawful" business practice under the UCL

requires an act or practice, committed

pursuant to business activity, that is at the same time forbidden by law. The Court has sustained Cross-Defendant's

Demurrers to the FACC such that any "unlawful" act predicated on a cause of

action is also not well-pleaded in conjunction with Cross-Complainant's Fifth

Cause of Action. And to the extent that

Cross-Complainant alleges that a violation of a law, statute or regulation not

expressly stated in the FACC serves as a basis for its allegations of UCL

"unlawful" activity, any such allegations are not set out with sufficiency in

the FACC to withstand demurrer.

As to Cross-Complainant's

allegations of "unfair" business practices in violation of the UCL, the Court

finds that the conduct set forth, as pleaded, is not so distinguishable from

the conduct supporting the alleged breach of contract as to set out a cause of

action for an "unfair" business practice. (See *Puentes v. Wells Fargo Home*

*Mortg., Inc.* (2008) 160 Cal.App.4th 638, 645 ("[A] breach of contract may ...

form the predicate for Section 17200 claims, provided it also constitutes

conduct that is 'unlawful, or unfair, or fraudulent").) As is noted above, Cross-Complainant has not

set out the terms of the Lease such that the Court might meaningfully

distinguish between conduct constituting solely a breach of the Lease versus

conduct that is both "unfair" and a breach of the Lease such that the conduct

might form the basis of a cause of action for "unfair" business practices in

violation of the UCL.

In accordance with the above, Cross-Defendant's

demurrer to the FACC's Fifth Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

D.

Motion to

Strike

VCG moves to strike various

allegations in the FACC pertaining to LAP's alleged economic damages. Because the Court sustained VCG's Demurrers

in their entirety with leave to amend, the Court deems VCG's Motion to Strike moot

and DENIES it as such.

II.

CONCLUSION

VCG's Demurrers to the FACC are SUSTAINED WITH 10 DAYS'

LEAVE TO AMEND. LAP'S Second Amended

Cross-Complaint is ordered to be filed and served no later than July 6, 2026.

VCG's Motion to Strike is DENIED AS

MOOT.

[1] As Reza and Mercedeh share the

same surname, first names are used for clarity.

[2] LAP does include a copy of its

proposed Second Amended Cross-Complaint as Exhibit A to its Opposition. Exhibit A has no Court stamp indicating that

it was previously filed with the Court.

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL

DISTRICT

VCG-SOUTHBAY

PAVILION, LLC, a Delaware limited liability company,

Plaintiff,

vs.

LAP CARSON INVESTMENTS,

LLC, a California limited liability company dba Pieology; MEHRDAD JAVADI, an

individual; ALI GHOMIZADEH, an individual; REZA KHALEGHIAN, an individual;

MERCEDEH KHALEGHIAN, an individual and DOES 1 through 20, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 25CMCV01869

[TENTATIVE] ORDER RE: PLAINTIFF'S APPLICATIONS

FOR RIGHT TO ATTACH ORDERS AND ORDERS FOR ISSUANCE OF WRITS OF ATTACHMENT

DATE: June 24, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff VCG-SOUTHBAY PAVILION, LLC

Responding Parties: Defendants

LAP Carson Investments, LLC, Mehrdad Javadi, Ali Gomizadeh, Reza Khaleghian and

Mercedeh Khaleghian

Notice: Ok

Tentative Ruling: Plaintiff's

Applications for Right to Attach Orders

and Orders for Issuance of Writs of Attachment are DENIED.

I.

## BACKGROUND

This is an

action for breach of a commercial lease and breach of guaranty. Plaintiff VCG-Southbay Pavilion, LLC

(“Plaintiff”) alleges that, on or about October 24, 2013, it entered into a

commercial lease with Defendant LAP Carson Investments, LLC (“LAP”) for the

real property located at 20700 Avalon Blvd., Unit B31/32, Carson, CA 90746 (the

“Premises”). Plaintiff alleges that, on

the same date, Defendants Mehrdad Javadi (“Javadi”), Ali Ghomizadeh (“Ghomizadeh”),

Reza Khaleghian (“Reza”)[1] and

Mercedeh Khalegian (“Mercedeh”) executed a Guaranty of LAP’s lease with

Plaintiff, unconditionally and irrevocably guaranteeing LAP’s performance under

the lease. Plaintiff alleges that LAP

defaulted in its lease obligations.

On November 4, 2025, Plaintiff filed the operative

Complaint against LAP, Javadi, Ghomizadeh, Reza, Mercedeh, and DOES 1 through

20, inclusive, alleging causes of action for: (1) Breach of Lease; and (2)

Breach of Guaranty.

On



April 15, 2026, Plaintiff filed an Application for Right to Attach Order and

Order for Issuance of Writ of Attachment and Notice of Application and Hearing

for Right to Attach Order and Order for Issuance of Writ of Attachment as to

Reza.

On May 5, 2026 Plaintiff filed the

following:

1. Form AT-120 Right to Attach Order

and Order for Issuance of Writ of Attachment after Hearing as to Mercedeh

Khaleghian.

2. Plaintiff's Application for Writ

of Attachment and Right to Attach Order Against Defendant Mehrdad Javadi.

3. Proof of Service as to Mercedeh

Khaleghian

4. Form At-115 Notice of Application

and Hearing for Right to Attach Order, Order for Issuance of Writ of Attachment

as to Mercedeh Khaleghian

5. Request for Judicial Notice in

Support of Plaintiff's Application for Writ of Attachment and Right to Attach

Order Against Defendant LAP Carson Investments, LLC.

6. Form AT-120 Right to Attach Order

and Order for Issuance of Writ of Attachment after Hearing as to Mehrdad

Javadi.

7. Form AT-105 Application for Right

to Attach Order and Order for Issuance of Writ of Attachment After Hearing as

to Mehrdad Javadi.

8. Form AT-135 Writ of Attachment

After Hearing as to Mehrdad Javadi.

9. Form AT-115 Notice of Application

and Hearing for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Ali Ghomizadeh.

10. Request for Judicial Notice in

Support of Plaintiff's Application for Writ of Attachment and Right to Attach

Order Against Defendant Ali Ghomizadeh.

11. Form AT-105 Application for Right

to Attach Order and Order for Issuance of Writ of Attachment After Hearing as

to LAP Carson Investments.

12. Form AT-120 Right to Attach Order

and Order for Issuance of Writ of Attachment as to LAP Carson Investments, LLC.

13. Plaintiff's Application for Writ

of Attachment and Right to Attach Order Against Defendant Mercedeh Khaleghian.

14. Form AT-105 Application for Right

to Attach Order and Order for Issuance of Writ of Attachment After Hearing as

to Ali Ghomizadeh.

15. Request for Judicial Notice in

Support of Plaintiff's Application for Writ of Attachment and Right to Attach

Order Against Mehrdad Javadi.

16. Proof of Service as to Mehrdad

Javadi.

17. Request for Judicial Notice in

Support of Plaintiff's Application for Writ of Attachment and Right to Attach

Order Against Mercedeh Khaleghian.

18. Form AT-135 for Writ of Attachment

After Hearing as to Mercedeh Khaleghian.

19. Plaintiff's Application for Writ

of Attachment and Right to Attach Order Against Defendant LAP Carson

Investments LLC.

20. Form AT-105 Application for Right

to Attach Order and Order for Issuance of Writ of Attachment as to Mercedeh

Khaleghian.

21. Form AT-115 Notice of Application

and Hearing for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Mehrdad Javadi.

22. Form AT-135 Writ of Attachment

After Hearing as to Ali Ghomizadeh.

23. Plaintiff's Application for Writ

of Attachment and Right to Attach Order Against Defendant Ali Ghomizadeh.

24. Form AT-115 Notice of Application

and Hearing for Right to Attach Order and Order for Issuance of Writ of

Attachment as to LAP Carson Investments, LLC.

25. Form AT-135 Writ of Attachment

After Hearing as to LAP Carson Investments LLC.

26. Proof of Service as to Ali

Ghomizadeh.

27. Proof of Service as to LAP Carson

Investments LLC.

28. Form AT-120 Right to Attach Order

and Order for Issuance of Writ of Attachment as to Ali Ghomizadeh.

On May 11, 2026 Plaintiff filed

the following:

1. Plaintiff's Application for Writ

of Attachment and Right to Attach Order Against Defendant Reza Khaleghian.

2. Form AT-120 Right to Attach Order

and Order for Issuance of Writ of Attachment as to Reza Khaleghian.

3. Request for Judicial Notice in

Support of Plaintiff's Application for Writ of Attachment and Right to Attach

Order Against Defendant Reza Khaleghian.

4. Form AT-135 Writ of Attachment

After Hearing as to Reza Khaleghian.

On May 12, 2026 Plaintiff filed

the following[2]:

1. Plaintiff's Application for Writ

of Attachment and Right to Attach Order Against Defendant Reza Khaleghian.

2. Request for Judicial Notice in

Support of Plaintiff's Application for Writ of Attachment and Right to Attach

Order Against Defendant Reza Khaleghian.

3. Form AT-115 Notice of Application

and Hearing for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Reza Khaleghian.

4. Form AT-105 Application for Right

to Attach Order and Order for Issuance of Writ of Attachment as to Reza

Khaleghian.

5. Form AT-135 Writ of Attachment

After Hearing as to Reza Khaleghian.

6. Form AT-120 Right to Attach Order

and Order for Issuance of Writ of Attachment as to Reza Khaleghian.

On

May 12, 2026, the Court heard Plaintiff's Application for Right to Attach Order

and Writ of Attachment as to Defendant Reza Khaleghian and denied Plaintiff's

Application without prejudice (See Minute Order, 5/12/16.)

On

June 10, 2026, LAP, Javadi, Ghomizadeh, Reza, and Mercedeh (collectively, the "Defendants")

filed a consolidated Opposition to Plaintiff's Applications for Right to Attach

Order and Writs of Attachment.

On June 17, 2026, Plaintiff filed a

Reply.

II.

ANALYSIS

A.

Legal

Standard

“Except as otherwise

provided by statute, an attachment may be issued only in an action on a claim

or claims for money, each of which is based upon a contract, express or

implied, where the total amount of the claim or claims is a fixed or readily

ascertainable amount not less than five hundred dollars (\$500) exclusive of

costs, interest, and attorney's fees.” (Code Civ. Proc. § 483.010(a).) “If the action is against a defendant who is

a natural person, an attachment may be issued only on a claim which arises out

of the conduct by the defendant of a trade, business, or profession. An

attachment may not be issued on a claim against a defendant who is a natural

person if the claim is based on the sale or lease of property, a license to use

property, the furnishing of services, or the loan of money where the property

sold or leased, or licensed for use, the services furnished, or the money loaned

was used by the defendant primarily for personal, family, or household

purposes.” (Code Civ. Proc. § 483.010(c).)

“Upon the filing of the

complaint or at any time thereafter, the plaintiff may apply pursuant to this

article for a right to attach order and a writ of attachment by filing

an application for the order and writ with the court in which the action

is brought.” (Code Civ. Proc. § 484.010.) The

application shall be executed under oath and must include: (1) a statement

showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (Id., § 484.020.)

“The application [for a writ of attachment] shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Proc. § 484.030.)

The Court shall issue a right to attach order if it finds all of the following:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued;
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based;



(3) The attachment is not sought for a purpose other

than the recovery on the claim upon which the attachment is based; and

(4) The amount to be secured by the attachment is greater than

zero.

(Code Civ. Proc. § 484.090.) To

establish the "probable validity" of the claim, the applicant must

show "it is more likely than not" it will obtain a judgment against

the defendant on its claim. (Id., § 481.190.)

B.

Requests for

Judicial Notice ("RJN")<sup>[3]</sup>

Pursuant to Evidence Code § 452(c)

and (h), Plaintiff requests the Court take judicial notice of the following

documents:

1.

LAP

Statement of Information filed with the Secretary of State on July 24, 2023

(May 12 RJN, Exh. 1);

2.

LAP

Statement of Information filed with the Secretary of State on September 1, 2021

(May 12 RJN, Exh. 2);

3.

LA

PIE GROUP, INC. Statement of Information filed with the Secretary of State on

May 14, 2025 (May 12 RJN, Exh. 3);

4.

LA

PIE GROUP, INC. Statement of Information filed with the Secretary of State on July

24, 2023 (May 12 RJN, Exh. 4); and

5.

LAP

Articles of Incorporation filed with the Secretary of State on August 23, 2013

(May 12 RJN, Exh. 5).

Evidence Code § 452 permits the Court

to take judicial notice of “[o]fficial acts of the legislative, executive , and

judicial departments of the United States and of any state of the United States”

as well as “[f]acts and propositions that are not reasonably subject to dispute

and are capable of immediate and accurate determination by resort to sources of

reasonably undisputable accuracy.” (Evid. Code § 452(c), (h).) Each of Plaintiff’s May 12 RJN Exhibits 1-5

are documents of which the Court is permitted to take judicial notice and Defendants

do not oppose. Accordingly, the Court

GRANTS Plaintiff's Request for Judicial Notice in its entirety.

C.

Discussion

Plaintiff

seeks the issuance of Right to Attach Orders and Writs of Attachment as to each

of the following Defendants: (1) Mercedeh Khalegian, (2) Reza Khalegian, (3) LAP

Carson Investments, LLC, (4) Mehrdad Javadi, and (5) Ali Ghomizadeh. For each

application, Plaintiff filed an Application for Writ of Attachment, a Form

AT-105, a Form AT-115, a Form AT-120, and a Form AT-135. Defendants oppose, arguing that Plaintiff's Application should be

denied because Plaintiff seeks to secure future rent that has not yet accrued

and because Plaintiff's claim is substantially disputed by Defendants'

Cross-Complaint.[4] Defendants also argue that the request is

premature because no discovery has occurred, no trial date has been set, and

Plaintiff's own demurrer directed at Defendants' Cross-Complaint remains

pending.

Plaintiff's Applications do not

satisfy the statutory requirements.

Code of Civil Procedure § 484.020

requires that the application be "executed under oath." (See Code Civ. Proc. §

484.020.) Plaintiff's Applications are

not.[5]

In its previous Order denying Plaintiff's

prior Application as to Reza, the Court expressly noted this deficiency and denied

Plaintiff's Application without prejudice to allow Plaintiff to address what

appeared to be an oversight. (See Minute Order, 5/12/26.) Plaintiff has not corrected the issue as to Reza's

Application or any of the other Applications.

As was noted in the Court's May 12 Order,

statutory attachment procedures are purely creations of the

legislature and as such are subject to "strict construction." (See Hobbs

v. Weiss (1999) 73 Cal.App.4th 76, 79 ("Hobbs")(citing Vershbow v.

Reiner (1991) 231 Cal.App.3d 879, 882.) Plaintiff has not

presented its Applications under oath and therefore Plaintiff's Applications

are DENIED.

III.

CONCLUSION

Plaintiff's

Application for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Defendant LAP Carson Investments, LLC is DENIED.

Plaintiff's

Application for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Defendant Mehrdad Javadi is DENIED.

Plaintiff's

Application for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Defendant Ali Ghomizadeh is DENIED.

Plaintiff's

Application for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Defendant Mercedeh Khaleghian is DENIED.

Plaintiff's

Application for Right to Attach Order and Order for Issuance of Writ of

Attachment as to Defendant Reza Khaleghian is DENIED.

[1] As Reza and Mercedeh share the

same surname, first names are used for clarity.

[2] Plaintiff's May 12 filing appears to

be a duplicate.

[3] In connection with each of its

Applications, Plaintiff requests the Court take judicial notice of the same

five documents. In the interest of

brevity, the Court makes its ruling as to Plaintiff's May 12, 2025 Request for

Judicial Notice in Support of Plaintiff VCG-Southbay Pavilion, LLC's

Application for Writ of Attachment and Right to Attach Order Against Defendant

Reza Khaleghian (the "May 12 RJN"), with the understanding that the ruling

applies to all the filed RJNs.

[4] Defendants' Opposition references Defendants'

Second Amended Cross-Complaint (the "SACC").

There is currently no SACC filed with the Court.

[5] (See Mercedeh, Javadi, Ghomizadeh,

and LAP Applications, each filed 5/5/26, p. 3 of 3 (Each signed by Attorney

Daniel L. Goodkin; Declaration under penalty of perjury not executed); see also

Reza Application, filed 5/12/26, p. 3 of 3 (same).)